a fiduciary, § 54 (1), and his possession of the firm's financial records is especially subject to his fiduciary obligations to the other partners. Indeed, Pennsylvania law specifically provides that "every partner shall at all times have access to and may inspect and copy any of [the partnership books]." § 52.[10] To facilitate this right of access, petitioner was required to keep these financial books and records at the firm's principal place of business, at least during the active life of the partnership. *Ibid.* The other partners in the firm were—and still are—entitled to enforce these rights through legal action by demanding production of the records in a suit for a formal accounting. § 55.[11]

It should be noted also that petitioner was content to leave these records with the other members of the partnership at their principal place of business for more than three years after he left the firm. Moreover, the Government contends that the other partners in the firm had agreed to turn the records over to the grand jury before discovering that petitioner had removed them from their offices, and that they made an unavailing demand upon petitioner to return the records. Whether or not petitioner's present possession of these records is an unlawful infringement of the rights of the other partners, this provides additional support for our conclusion that it is the organizational character of the records and the representative aspect of petitioner's present possession of

[10] The Court in *White,* in pointing out that union records were generally open to inspection by the members, 322 U. S., at 699–700, relied upon *Guthrie* v. *Harkness,* 199 U. S. 148, 153 (1905), where the Court observed that "the members of an ordinary partnership [have the same right] to examine their company's books."

[11] To implement these rights, Pennsylvania law permits any partner to bring suit against the partnership, and the partnership to sue any partner. Pa. Rule Civ. Proc. 2129.

them which predominates over his belatedly discovered personal interest in them.

Petitioner relies heavily on language in the Court's opinion in *White* which suggests that the "test" for determining the applicability of the Fifth Amendment privilege in this area is whether the organization "has a character so impersonal in the scope of its membership and activities that it cannot be said to embody or represent the purely private or personal interests of its constituents, but rather to embody their common or group interests only." 322 U. S., at 701. We must admit our agreement with the Solicitor General's observation that "it is difficult to know precisely what situations the formulation in *White* was intended to include within the protection of the privilege." Brief for United States 21. The Court in *White,* after stating its test, did not really apply it, nor has any of the subsequent decisions of this Court. On its face, the test is not particularly helpful in the broad range of cases, including this one, where the organization embodies neither "purely . . . personal interests" nor "group interests only," but rather some combination of the two.

In any event, we do not believe that the Court's formulation in *White* can be reduced to a simple proposition based solely upon the size of the organization. It is well settled that no privilege can be claimed by the custodian of corporate records, regardless of how small the corporation may be. *Grant* v. *United States,* 227 U. S. 74 (1913); *Fineberg* v. *United States,* 393 F. 2d 417, 420 (CA9 1968); *Hair Industry, Ltd.* v. *United States,* 340 F. 2d 510 (CA2 1965); cf. *George Campbell Painting Corp.* v. *Reid,* 392 U. S. 286 (1968). Every State has now adopted laws permitting incorporation of professional associations, and increasing numbers of lawyers, doctors, and other professionals are choosing to conduct their business af-

fairs in the corporate form rather than the more traditional partnership. Whether corporation or partnership, many of these firms will be independent entities whose financial records are held by a member of the firm in a representative capacity. In these circumstances, the applicability of the privilege should not turn on an insubstantial difference in the form of the business enterprise. See *In re Grand Jury Subpoena Duces Tecum,* 358 F. Supp. 661, 668 (Md. 1973).

This might be a different case if it involved a small family partnership, see *United States* v. *Slutsky,* 352 F. Supp. 1105 (SDNY 1972); *In re Subpoena Duces Tecum,* 81 F. Supp., at 421, or, as the Solicitor General suggests, Brief for United States 22–23, if there were some other pre-existing relationship of confidentiality among the partners. But in the circumstances of this case, petitioner's possession of the partnership's financial records in what can be fairly said to be a representative capacity compels our holding that his personal privilege against compulsory self-incrimination is inapplicable.

Affirmed.

MR. JUSTICE DOUGLAS, dissenting.

Bellis, the petitioner, was formerly one of three partners in a small law firm; the partnership was dissolved, and Bellis currently has lawful possession of the firm's records. The grand jury has subpoenaed those records apparently for the purpose of a tax investigation directed against Bellis personally.* He refused to comply, claiming his Fifth Amendment privilege against self-incrimination, but the Court today holds that privilege not available to Bellis. I think the case is clearly controlled by *Boyd* v. *United States,* 116 U. S. 616, and thus I dissent.

*See App. 24; Tr. of Oral Arg. 8.